

TENTATIVE RULING

Maria Gonzalez
v.
BestNest Management, LLC, et al.
21CV002228

Plaintiff's Motion for Final Approval and Award of Fees, Costs, and Service Award

Hearing Date: July 31, 2026

On Plaintiff Maria Gonzalez's ("Plaintiff") unopposed motion for final approval of the class action and Private Attorneys General Act of 2004 ("PAGA") settlement, the Court finds that, with the limited exceptions described herein, the settlement between Plaintiff and Defendants BestNest Management, LLC, and BestNest Staffing, LLC is fair, reasonable, and adequate. [*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1800-1802; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129-130.]

However, the Court declines Plaintiff's request for a \$10,000 class representative enhancement and will instead award her \$5,000.

Further, deficiencies remain with respect to (1) the adequacy of the evidentiary showing supporting the attorneys' fee request, and (2) evidence of notice to the California Labor and Workforce Development Agency ("LWDA") of the proposed PAGA settlement as required under Labor Code section 2699, subdivision (1)(2). Thus, the matter is **CONTINUED** to **September 4, 2026**, at 8:30 a.m. in Department 14 to allow Plaintiff to file supplemental papers by **August 25, 2026**, that address these issues.

Class Representative Service Award.

"[T]he rationale for making enhancement or incentive awards...is that [the class representative] should be compensated for the expense or risk he has incurred in conferring a benefit on other members of the class." [*Clark v. Am. Residential Services LLC* (2009) 175 Cal.App.4th 785, 806.] Factors to consider in determining if such an award should be given include "the actions the plaintiff has taken to protect the interests of the class, the degree to which the class has benefitted from those actions, and the amount of time and effort the plaintiff expended in pursuing the litigation" along with the risk to the class representative, financial and otherwise, in commencing suit. [*Id.* at 804.]

Plaintiff attests to her service to the Class, which includes regular discussions of the case with counsel, assisting with mediation, and providing information. [Gonzalez Decl. at ¶¶ 11-13.] She estimates that in total she has spent over 25 hours working on the case. [*Id.* at ¶ 13.] In addition, she took on the risks and responsibilities of being the named plaintiff in a class action, including the possibility of being deposed, potential costs if she were unsuccessful, and potential harm to her future career prospects. [*Id.* at ¶¶ 14-16.] For her contributions, Plaintiff seeks a \$10,000 service award, equivalent to \$400 per hour. That is double the amount typically awarded

by this Court. Despite Plaintiff's contributions to the case, they do not appear to be so exceptional as to warrant such a large service award. Therefore, the Court reduces the class representative enhancement to \$5,000.

Attorneys' Fees.

Plaintiff requests \$83,333.33 in fees, which is one-third of the gross \$250,000 settlement. Plaintiff's counsel fails to accompany the motion with any timesheets, hourly rates, attorney-by-attorney breakdowns of time spent, or any lodestar analysis. Without these materials, the Court cannot conduct the requisite lodestar cross-check, nor determine whether any multiplier is justified. Therefore, the Court **CONTINUES** the hearing on this motion to **September 4, 2026**, at 8:30 a.m. to afford Plaintiff's counsel to file supplemental declarations by **August 25, 2026**, with information that allows the Court to assess the reasonableness of the requested fees, including (1) each attorney's hourly rate and justification for that rate, (2) total hours worked by each attorney, broken down by categories of tasks performed, and (3) whether a multiplier is requested, and if so, evidence supporting its application. No fee award will be made at this time.

PAGA Settlement Approval.

As previously mentioned, the Court finds that the PAGA settlement is fair and reasonable. Also, the division of 75% to LWDA and 25% to the Aggrieved Employees is proper under section 2699, subdivision (m). However, Plaintiff has not submitted evidence that the settlement was provided to the LWDA as required by subdivision (l)(2). Thus, final approval of PAGA penalties is **CONDITIONALLY GRANTED**, subject to Plaintiff filing documentation by **August 25, 2026**, showing notice to the LWDA.

Conclusion.

Plaintiff's motion for final approval of the class settlement is **GRANTED**, except for the class representative enhancement award and attorneys' fees. Plaintiff is awarded a \$5,000 class representative enhancement. As to the requested fees and final approval of the PAGA penalties, the hearing is **CONTINUED** to September 4, 2026, so that Plaintiff may file and serve supplemental papers by August 25, 2026, that address the issues detailed above.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.